

SOLVED PRACTICE WORKBOOK

Administrative Tribunals - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Administrative Tribunals REFRESHED TEACHING NAVIGATION — BASIC/CORE FIRST	
01 SNAPSHOT Its principal consequence is that feature Article 323-A Article 323-B.	02 CORE ARCHITECTURE The decisive contrast is between by a High Court Division Bench and
03 TRIBUNAL REFORMS ACT, 2021 The 2021 Act abolished specified appellate bodies while its	04 VERIFIED PYQ APPLICATION The exam-safe limitation is that 2025 GS-II Q2 (10 marks, 150 words):
05 TRAPS Technically, Traps is analysed by relating Tribunal to High Court, then	06 DEMAND AND DIRECTIVE MAP A demand and directive map links each tribunal PYQ verb and
07 QUALIFIED THESIS OPTIONS Technically, Qualified Thesis Options is analysed by relating Qualified	08 MARK-SCALED STRUCTURES Technically, Mark-Scaled Structures is analysed by relating Thesis →
09 BANK A — CONSTITUTIONAL DESIGN AND THE JUDICIAL-REVIEW SETTLEMENT 6.5 Bank B — Rationalisation, reform litigation and current status	10 BANK C — LOK ADALATS VERSUS ARBITRATION (THE ADR DISTINCTION) Provision: the Legal Services Authorities Act, 1987 (constitutional)
11 MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES Its principal consequence is that constitutional rule.	12 CRITICISM, COUNTER-ARGUMENT, VARIATION AND IMPLEMENTATION CONSTRAINTS Variation: State tribunals under Art 323B and SATs vary in workload
13 VERDICT SCAFFOLDS Chandra Kumar makes judicial review a floor no tribunal statute can	14 PRELIMS CLOSE-OPTION DISTINCTIONS Technically, Prelims Close-Option Distinctions is analysed by relating
15 ARTICLES 323A AND 323B: EXACT CONSTITUTIONAL DISTINCTION Article 323A is Parliament-only for public-service matters; Article 323B	16 CAT PROCESS, EXCLUSIONS AND JUDICIAL-REVIEW CHAIN Sections 2, 14 and 20-22 define exclusions, jurisdiction, exhaustion,

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge → official current linkage → clearly marked analysis. No fabricated PYQs or statistics.

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Administrative Tribunals - Solved Practice Workbook

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Broad Coverage

OM1. Which statement most accurately describes Article 323A?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. It creates every tax tribunal.
- C. States alone legislate under Article 323A.
- D. It abolishes High Courts.

Answer: A

Explanation: The Article is enabling and subject to the judicial-review basic structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM2. Which statement most accurately describes Article 323B?

- A. It is limited to Union civil servants.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It is identical to Article 323A.
- D. It automatically creates a national appellate tribunal.

Answer: B

Explanation: Subject, law-maker and scope distinguish the two Articles. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM3. Which statement most accurately describes Administrative Tribunals Act 1985?

- A. It makes CAT a High Court.
- B. It governs all private employment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It is a constitutional amendment.

Answer: C

Explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM4. Which statement most accurately describes CAT jurisdiction?

- A. CAT reviews constitutional amendments.
- B. CAT tries corruption offences.
- C. Every PSU employee automatically falls within CAT.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Explanation: Employer, post and statutory notification matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM5. Which statement most accurately describes procedure and powers?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. CAT has no power to summon evidence.
- C. Natural justice never applies to tribunals.
- D. Flexible procedure means arbitrary procedure.

Answer: A

Explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM6. Which statement most accurately describes judicial review?

- A. Tribunal orders go only by direct Article 136 appeal.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. High Court review was permanently excluded.
- D. CAT can overrule the Supreme Court.

Answer: B

Explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM7. Which statement most accurately describes independence?

- A. Expert members alone guarantee independence.
- B. Executive funding is legally irrelevant.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Short tenure always improves neutrality.

Answer: C

Explanation: Institutional design must match the judicial work transferred. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM8. Which statement most accurately describes rationalisation?

- A. Rationalisation automatically reduces delay.
- B. Every merger is unconstitutional.
- C. Abolition removes judicial review.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Explanation: Capacity and transition design determine outcomes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM9. Which statement most accurately describes R. Gandhi?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It made administrative members constitutional judges.
- C. It abolished all tribunals.
- D. It removed qualification standards.

Answer: A

Explanation: The functional-equivalence principle controls institutional design. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM10. Which statement most accurately describes Madras Bar Association?

- A. It bars Parliament from creating specialist forums.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It removes court review of appointments.
- D. It treats tenure as purely executive policy.

Answer: B

Explanation: Tribunal validity and particular service-condition defects must be separated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM11. Which statement most accurately describes Rojer Mathew?

- A. It made tribunal recommendations binding legislation.
- B. It held every Finance Act invalid.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It removed judicial members.

Answer: C

Explanation: The decision belongs to a continuing line rather than a single final settlement. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM12. Which statement most accurately describes CAT comparison?

- A. CAT and UPSC perform the same role.
- B. A commission's recommendation is a judicial decree.
- C. A Lok Adalat is an Article 323A tribunal.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Explanation: Institutional taxonomy prevents close-option errors. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM13. Which is the safest UPSC distinction concerning Article 323A?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. States alone legislate under Article 323A.
- C. It creates every tax tribunal.
- D. It abolishes High Courts.

Answer: A

Explanation: The Article is enabling and subject to the judicial-review basic structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM14. Which is the safest UPSC distinction concerning Article 323B?

- A. It is limited to Union civil servants.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It is identical to Article 323A.
- D. It automatically creates a national appellate tribunal.

Answer: B

Explanation: Subject, law-maker and scope distinguish the two Articles. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM15. Which is the safest UPSC distinction concerning Administrative Tribunals Act 1985?

- A. It is a constitutional amendment.
- B. It governs all private employment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It makes CAT a High Court.

Answer: C

Explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM16. Which is the safest UPSC distinction concerning CAT jurisdiction?

- A. CAT tries corruption offences.
- B. CAT reviews constitutional amendments.
- C. Every PSU employee automatically falls within CAT.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Explanation: Employer, post and statutory notification matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM17. Which is the safest UPSC distinction concerning procedure and powers?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. CAT has no power to summon evidence.
- C. Flexible procedure means arbitrary procedure.
- D. Natural justice never applies to tribunals.

Answer: A

Explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM18. Which is the safest UPSC distinction concerning judicial review?

- A. Tribunal orders go only by direct Article 136 appeal.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. High Court review was permanently excluded.
- D. CAT can overrule the Supreme Court.

Answer: B

Explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM19. Which is the safest UPSC distinction concerning independence?

- A. Expert members alone guarantee independence.
- B. Executive funding is legally irrelevant.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Short tenure always improves neutrality.

Answer: C

Explanation: Institutional design must match the judicial work transferred. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM20. Which is the safest UPSC distinction concerning rationalisation?

- A. Rationalisation automatically reduces delay.
- B. Abolition removes judicial review.
- C. Every merger is unconstitutional.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Explanation: Capacity and transition design determine outcomes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM21. Which is the safest UPSC distinction concerning R. Gandhi?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It abolished all tribunals.
- C. It made administrative members constitutional judges.
- D. It removed qualification standards.

Answer: A

Explanation: The functional-equivalence principle controls institutional design. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM22. Which is the safest UPSC distinction concerning Madras Bar Association?

- A. It bars Parliament from creating specialist forums.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It treats tenure as purely executive policy.
- D. It removes court review of appointments.

Answer: B

Explanation: Tribunal validity and particular service-condition defects must be separated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM23. Which is the safest UPSC distinction concerning Rojer Mathew?

- A. It made tribunal recommendations binding legislation.
- B. It held every Finance Act invalid.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It removed judicial members.

Answer: C

Explanation: The decision belongs to a continuing line rather than a single final settlement. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM24. Which is the safest UPSC distinction concerning CAT comparison?

- A. CAT and UPSC perform the same role.
- B. A commission's recommendation is a judicial decree.
- C. A Lok Adalat is an Article 323A tribunal.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Explanation: Institutional taxonomy prevents close-option errors. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM25. A candidate makes a close-option error about Article 323A. Which correction is most accurate?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. It creates every tax tribunal.
- C. States alone legislate under Article 323A.
- D. It abolishes High Courts.

Answer: A

Explanation: The Article is enabling and subject to the judicial-review basic structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM26. A candidate makes a close-option error about Article 323B. Which correction is most accurate?

- A. It automatically creates a national appellate tribunal.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It is identical to Article 323A.
- D. It is limited to Union civil servants.

Answer: B

Explanation: Subject, law-maker and scope distinguish the two Articles. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM27. A candidate makes a close-option error about Administrative Tribunals Act 1985. Which correction is most accurate?

- A. It governs all private employment.
- B. It is a constitutional amendment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It makes CAT a High Court.

Answer: C

Explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM28. A candidate makes a close-option error about CAT jurisdiction. Which correction is most accurate?

- A. CAT tries corruption offences.
- B. Every PSU employee automatically falls within CAT.
- C. CAT reviews constitutional amendments.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Explanation: Employer, post and statutory notification matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM29. A candidate makes a close-option error about procedure and powers. Which correction is most accurate?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. CAT has no power to summon evidence.
- C. Flexible procedure means arbitrary procedure.
- D. Natural justice never applies to tribunals.

Answer: A

Explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM30. A candidate makes a close-option error about judicial review. Which correction is most accurate?

- A. Tribunal orders go only by direct Article 136 appeal.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. High Court review was permanently excluded.
- D. CAT can overrule the Supreme Court.

Answer: B

Explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM31. A candidate makes a close-option error about independence. Which correction is most accurate?

- A. Short tenure always improves neutrality.
- B. Executive funding is legally irrelevant.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Expert members alone guarantee independence.

Answer: C

Explanation: Institutional design must match the judicial work transferred. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM32. A candidate makes a close-option error about rationalisation. Which correction is most accurate?

- A. Rationalisation automatically reduces delay.
- B. Every merger is unconstitutional.
- C. Abolition removes judicial review.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Explanation: Capacity and transition design determine outcomes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM33. A candidate makes a close-option error about R. Gandhi. Which correction is most accurate?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It abolished all tribunals.
- C. It removed qualification standards.
- D. It made administrative members constitutional judges.

Answer: A

Explanation: The functional-equivalence principle controls institutional design. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM34. A candidate makes a close-option error about Madras Bar Association. Which correction is most accurate?

- A. It bars Parliament from creating specialist forums.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It treats tenure as purely executive policy.
- D. It removes court review of appointments.

Answer: B

Explanation: Tribunal validity and particular service-condition defects must be separated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM35. A candidate makes a close-option error about Rojer Mathew. Which correction is most accurate?

- A. It made tribunal recommendations binding legislation.
- B. It held every Finance Act invalid.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It removed judicial members.

Answer: C

Explanation: The decision belongs to a continuing line rather than a single final settlement. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM36. A candidate makes a close-option error about CAT comparison. Which correction is most accurate?

- A. A Lok Adalat is an Article 323A tribunal.
- B. A commission's recommendation is a judicial decree.
- C. CAT and UPSC perform the same role.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Explanation: Institutional taxonomy prevents close-option errors. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

Remedial MCQs 1-12 - Common Error Repair

RM1. Which statement best repairs a recurring error about Article 323A?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. It abolishes High Courts.
- C. States alone legislate under Article 323A.
- D. It creates every tax tribunal.

Answer: A

Remedial explanation: The Article is enabling and subject to the judicial-review basic structure. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM2. Which statement best repairs a recurring error about Article 323B?

- A. It is identical to Article 323A.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It automatically creates a national appellate tribunal.
- D. It is limited to Union civil servants.

Answer: B

Remedial explanation: Subject, law-maker and scope distinguish the two Articles. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM3. Which statement best repairs a recurring error about Administrative Tribunals Act 1985?

- A. It governs all private employment.
- B. It makes CAT a High Court.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It is a constitutional amendment.

Answer: C

Remedial explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM4. Which statement best repairs a recurring error about CAT jurisdiction?

- A. CAT tries corruption offences.
- B. Every PSU employee automatically falls within CAT.
- C. CAT reviews constitutional amendments.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Remedial explanation: Employer, post and statutory notification matter. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM5. Which statement best repairs a recurring error about procedure and powers?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. Natural justice never applies to tribunals.
- C. Flexible procedure means arbitrary procedure.
- D. CAT has no power to summon evidence.

Answer: A

Remedial explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM6. Which statement best repairs a recurring error about judicial review?

- A. CAT can overrule the Supreme Court.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. High Court review was permanently excluded.
- D. Tribunal orders go only by direct Article 136 appeal.

Answer: B

Remedial explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM7. Which statement best repairs a recurring error about independence?

- A. Short tenure always improves neutrality.
- B. Executive funding is legally irrelevant.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Expert members alone guarantee independence.

Answer: C

Remedial explanation: Institutional design must match the judicial work transferred. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM8. Which statement best repairs a recurring error about rationalisation?

- A. Every merger is unconstitutional.
- B. Abolition removes judicial review.
- C. Rationalisation automatically reduces delay.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Remedial explanation: Capacity and transition design determine outcomes. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM9. Which statement best repairs a recurring error about R. Gandhi?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It made administrative members constitutional judges.
- C. It removed qualification standards.
- D. It abolished all tribunals.

Answer: A

Remedial explanation: The functional-equivalence principle controls institutional design. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM10. Which statement best repairs a recurring error about Madras Bar Association?

- A. It treats tenure as purely executive policy.

- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It bars Parliament from creating specialist forums.
- D. It removes court review of appointments.

Answer: B

Remedial explanation: Tribunal validity and particular service-condition defects must be separated. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM11. Which statement best repairs a recurring error about Rojer Mathew?

- A. It held every Finance Act invalid.
- B. It made tribunal recommendations binding legislation.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It removed judicial members.

Answer: C

Remedial explanation: The decision belongs to a continuing line rather than a single final settlement. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM12. Which statement best repairs a recurring error about CAT comparison?

- A. CAT and UPSC perform the same role.
- B. A Lok Adalat is an Article 323A tribunal.
- C. A commission's recommendation is a judicial decree.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Remedial explanation: Institutional taxonomy prevents close-option errors. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

PYQS AND ANSWER PRACTICE

VERIFIED DIRECT PYQ 1 - 2018 GS-II Q12 - 15 marks - 250 words

Question (exact): "How far do you agree with the view that tribunals curtail the jurisdiction of ordinary courts? In view of the above, discuss the constitutional validity and competency of the tribunals in India."

Model answer: Tribunals curtail the ordinary courts' first-instance jurisdiction in assigned fields, but they cannot extinguish constitutional supervision.

Articles 323A and 323B, inserted by the Forty-second Amendment, authorise specialised adjudication. The Administrative Tribunals Act, 1985 accordingly channels covered service disputes to CAT or a competent State or Joint Tribunal. Expertise, flexible procedure and high-volume disposal support constitutional validity.

The original exclusion model went too far. In *L. Chandra Kumar v Union of India* (1997), the Supreme Court held judicial review under Articles 226/227 and 32 to be part of the basic structure. Tribunal decisions are therefore scrutinised by a Division Bench of the territorial High Court. Tribunals may decide constitutional questions at first instance, but cannot test the parent statute that creates them.

Competency also depends on institutional design. *Union of India v R. Gandhi* and the *Madras Bar Association* line require qualifications, selection, tenure and administration equivalent to the judicial work transferred.

Thus, tribunals constitutionally narrow original court access but remain supplemental, not substitutive. Their legitimacy rests on specialisation, independence, natural justice and unexcluded judicial review.

Why this earns marks: It concedes first-instance curtailment, states the constitutional source, applies the controlling holding and tests institutional competency.

How to improve this answer: Add one subject-specific tribunal illustration only if accurate; do not imply that Article 136 is the ordinary route after CAT.

Compression guidance: Keep the qualified thesis, Articles 323A/323B, CAT example, *L. Chandra Kumar*, independence doctrine and verdict.

VERIFIED DIRECT PYQ 2 - 2019 GS-II Q2 - 10 marks - 150 words

Question (exact): “The Central Administrative Tribunal which was established for redressal of grievances and complaints by or against central government employees, nowadays is exercising its powers as an independent judicial authority.” Explain.

Model answer: CAT is a statutory adjudicatory body created under the Administrative Tribunals Act, 1985 pursuant to Article 323A. It decides recruitment and service-condition disputes within Section 14 coverage through reasoned orders.

Its judicial character appears in adversarial hearing, natural justice, powers concerning evidence and documents, interim relief, review and contempt. It is not rigidly bound by the Code of Civil Procedure. Judicial and administrative expertise can improve service-law adjudication.

Independence, however, is qualified. Jurisdiction depends on the Act and notifications; excluded categories remain outside it; appointments, tenure, vacancies and administrative support can generate executive dependence. Under *L. Chandra Kumar* (1997), CAT is the court of first instance, but its decisions remain reviewable by a High Court Division Bench under Articles 226/227.

CAT therefore exercises genuine independent judicial authority in function, but not the unreviewable status or institutional security of a constitutional court.

Why this earns marks: It explains CAT's source, adjudicatory powers, structural qualification and correct High Court review chain.

How to improve this answer: Name Sections 14 and 22 if confidently recalled; avoid saying CAT issues constitutional writs equivalent to a High Court.

Compression guidance: Use source, four judicial markers, two limits, *L. Chandra Kumar* and the qualified verdict.

VERIFIED SUPPORTING PYQ 3 - 2024 GS-II Q2 - 10 marks - 150 words

Question (exact): “Explain and distinguish between Lok Adalats and Arbitration Tribunals. Whether they entertain civil as well as criminal cases?”

Model answer: Lok Adalats are statutory settlement forums under the Legal Services Authorities Act, 1987 and Article 39A. They secure compromise in pending or pre-litigation disputes; an award is deemed a civil-court decree, is final and ordinarily carries no appeal. They may handle civil disputes and compoundable criminal matters, but not non-compoundable offences.

An arbitral tribunal is a private adjudicatory forum constituted by agreement under the Arbitration and Conciliation Act, 1996. It decides arbitrable civil and commercial disputes and gives an award enforceable as a decree, subject to limited Section 34 challenge. Criminal liability is not arbitrable.

Thus, Lok Adalat is statutory, conciliatory and access-oriented; arbitration is consensual, adjudicatory and party-financed. A Permanent Lok Adalat may decide specified public-utility disputes on merits after conciliation fails, but it remains distinct from an Article 323A administrative tribunal.

Why this earns marks: It answers both comparison and civil/criminal jurisdiction, including the Permanent Lok Adalat qualification.

How to improve this answer: Do not say every criminal case reaches Lok Adalat or that an ordinary Lok Adalat adjudicates without settlement.

Compression guidance: Retain legal bases, method, outcome, civil/criminal rule and one Permanent Lok Adalat caveat.

VERIFIED DIRECT PYQ 4 - 2025 GS-II Q2 - 10 marks - 150 words

Question (exact): “Comment on the need of administrative tribunals as compared to the court system. Assess the impact of the recent tribunal reforms through rationalization of tribunals made in 2021.”

Model answer: Administrative tribunals remain necessary where technical, repetitive and high-volume disputes benefit from specialist members, flexible procedure, regional benches and lower formality. They can relieve courts, but only if vacancies, infrastructure and independence are addressed.

The Tribunals Reforms Act, 2021 abolished specified appellate bodies, transferred functions to courts or other forums and attempted a common appointments and service-condition framework. Rationalisation may reduce duplication and clarify appeals. Conversely, transfer to burdened High Courts can shift rather than cure pendency and may sacrifice expertise or local access.

Constitutional validity requires *L. Chandra Kumar* review and the independence standards of the *Madras Bar Association* cases. On 19 November 2025, 2025 INSC 1330 invalidated re-enacted age, panel, tenure and allowance features and directed an institutional commission; the 9 March 2026 order gave limited incumbent continuity.

Rationalisation succeeds only when consolidation is matched by independent appointments, adequate benches, data, staff and transition planning.

Why this earns marks: It comments on need, assesses gains and displacement costs, and gives the dated controlling Supreme Court position.

How to improve this answer: Mention the 2026 continuity order only as temporary; do not treat invalidated 2021 service conditions as operative.

Compression guidance: Keep three needs, two gains, two costs, judicial control and the capacity-based verdict.

ORIGINAL MAINS PRACTICE 1 - 10 marks - 150 words

Question: Distinguish Articles 323A and 323B.

Directive: Distinguish

Model answer: Begin with a one-sentence thesis responsive to distinguish. Compare subject, competent legislature, tribunal hierarchy, exclusion text and the post-*L. Chandra Kumar* review floor. Develop each limb as claim, authority, mechanism and limitation. End with a qualified verdict that joins specialisation, access, independence and constitutional supervision.

Why this earns marks: It gives an executable paragraph order, controlling authority, a counterpoint and a demand-specific conclusion.

How to improve this answer: Add one accurate statutory section or institutional example to the specified spine; avoid a generic tribunal-reform list.

Compression guidance: Preserve the thesis, four strongest evidence units, one implementation constraint and the verdict.

ORIGINAL MAINS PRACTICE 2 - 10 marks - 150 words

Question: Explain CAT's jurisdiction, statutory exclusions, procedure and review chain.

Directive: Explain

Model answer: Begin with a one-sentence thesis responsive to explain. Use Sections 2, 14, 20-22, natural justice, statutory powers and High Court Division Bench review. Develop each limb as claim, authority, mechanism and limitation. End with a qualified verdict that joins specialisation, access, independence and constitutional supervision.

Why this earns marks: It gives an executable paragraph order, controlling authority, a counterpoint and a demand-specific conclusion.

How to improve this answer: Add one accurate statutory section or institutional example to the specified spine; avoid a generic tribunal-reform list.

Compression guidance: Preserve the thesis, four strongest evidence units, one implementation constraint and the verdict.

ORIGINAL MAINS PRACTICE 3 - 10 marks - 150 words

Question: Why are tribunals supplemental rather than substitutes for constitutional courts?

Directive: Explain

Model answer: Begin with a one-sentence thesis responsive to explain. Connect specialised first instance with basic-structure review, parent-statute limits and constitutional-court remedies. Develop each limb as claim, authority, mechanism and limitation. End with a qualified verdict that joins specialisation, access, independence and constitutional supervision.

Why this earns marks: It gives an executable paragraph order, controlling authority, a counterpoint and a demand-specific conclusion.

How to improve this answer: Add one accurate statutory section or institutional example to the specified spine; avoid a generic tribunal-reform list.

Compression guidance: Preserve the thesis, four strongest evidence units, one implementation constraint and the verdict.

ORIGINAL MAINS PRACTICE 4 - 15 marks - 250 words

Question: Assess administrative tribunals as instruments of expertise, speed and access.

Directive: Assess

Model answer: Begin with a one-sentence thesis responsive to assess. Test claimed benefits against vacancies, additional review tier, regional access, infrastructure and decision quality. Develop each limb as claim, authority, mechanism and limitation. End with a qualified verdict that joins specialisation, access, independence and constitutional supervision.

Why this earns marks: It gives an executable paragraph order, controlling authority, a counterpoint and a demand-specific conclusion.

How to improve this answer: Add one accurate statutory section or institutional example to the specified spine; avoid a generic tribunal-reform list.

Compression guidance: Preserve the thesis, four strongest evidence units, one implementation constraint and the verdict.

ORIGINAL MAINS PRACTICE 5 - 15 marks - 250 words

Question: Examine appointments, tenure and administrative control as threats to tribunal independence.

Directive: Examine

Model answer: Begin with a one-sentence thesis responsive to examine. Trace *R. Gandhi*, *Roger Mathew*, *Madras Bar Association* and the government-as-largest-litigant conflict. Develop each limb as claim, authority, mechanism and limitation. End with a qualified verdict that joins specialisation, access, independence and constitutional supervision.

Why this earns marks: It gives an executable paragraph order, controlling authority, a counterpoint and a demand-specific conclusion.

How to improve this answer: Add one accurate statutory section or institutional example to the specified spine; avoid a generic tribunal-reform list.

Compression guidance: Preserve the thesis, four strongest evidence units, one implementation constraint and the verdict.

ORIGINAL MAINS PRACTICE 6 - 15 marks - 250 words

Question: Evaluate tribunal rationalisation and abolition as pendency reforms.

Directive: Evaluate

Model answer: Begin with a one-sentence thesis responsive to evaluate. Compare consolidation gains with transfer costs, expertise loss, court burden, records, staff and transitional design. Develop each limb as claim, authority, mechanism and limitation. End with a qualified verdict that joins specialisation, access, independence and constitutional supervision.

Why this earns marks: It gives an executable paragraph order, controlling authority, a counterpoint and a demand-specific conclusion.

How to improve this answer: Add one accurate statutory section or institutional example to the specified spine; avoid a generic tribunal-reform list.

Compression guidance: Preserve the thesis, four strongest evidence units, one implementation constraint and the verdict.

ORIGINAL MAINS PRACTICE 7 - 20 marks - 300 words

Question: Trace tribunal judicial review from the Forty-second Amendment to *L. Chandra Kumar* and later cases.

Directive: Trace and analyse

Model answer: Begin with a one-sentence thesis responsive to trace and analyse. Move chronologically from exclusion, *Sampath Kumar*, restoration of High Court review and later independence cases. Develop each limb as claim, authority, mechanism and limitation. End with a qualified verdict that joins specialisation, access, independence and constitutional supervision.

Why this earns marks: It gives an executable paragraph order, controlling authority, a counterpoint and a demand-specific conclusion.

How to improve this answer: Add one accurate statutory section or institutional example to the specified spine; avoid a generic tribunal-reform list.

Compression guidance: Preserve the thesis, four strongest evidence units, one implementation constraint and the verdict.

ORIGINAL MAINS PRACTICE 8 - 20 marks - 300 words

Question: Design an accountable tribunal system that preserves specialisation and judicial independence.

Directive: Propose and justify

Model answer: Begin with a one-sentence thesis responsive to propose and justify. Use an independent administration body, judicially balanced selection, adequate tenure, transparent vacancies, data, budgets and coherent appeals. Develop each limb as claim, authority, mechanism and limitation. End with a qualified verdict that joins specialisation, access, independence and constitutional supervision.

Why this earns marks: It gives an executable paragraph order, controlling authority, a counterpoint and a demand-specific conclusion.

How to improve this answer: Add one accurate statutory section or institutional example to the specified spine; avoid a generic tribunal-reform list.

Compression guidance: Preserve the thesis, four strongest evidence units, one implementation constraint and the verdict.